



## **STANDING ORDER NO. Lic. & Leg./35/2022**

### **LICENSING OF HOTELS, HOSTELS, MOTELS, GUEST HOUSES AND OTHER PLACES OF PUBLIC ENTERTAINMENT IN THE NCT OF DELHI**

#### **INTRODUCTION**

The Delhi Police Act, 1978, was enacted and came into force on 01.07.1978. Section 28 of the Act empowers the Commissioner of Police, Delhi to make regulations for preservation of order in public places. Consequently, the "Regulation for Keeping Places of Public Entertainment in the Union Territory of Delhi-1980" was notified vide No. 4453/Special Cell dated 19/12/1980. As per the provision of Rule 6 of the said Regulations, no person shall open or keep place of public entertainment in the NCT of Delhi without obtaining a Lodging License. On 01 October, 2019, a single window online system for licensing of eating houses/lodging houses in Delhi was launched. This unique initiative is a joint effort of various agencies involved in the process of licensing in the NCT of Delhi for facilitating ease of doing business without effecting any change in existing legal/ regulatory position and mandate given by the respective Acts to all concerned agencies. Applicants can apply for statutory clearances/ licenses required from Delhi Police, Municipal Bodies, Delhi Fire Services and Delhi Pollution Control Committee by filling a single application form at [www.delehlhlic.mha.gov.in](http://www.delehlhlic.mha.gov.in). The Unified Portal aims at simplifying and rationalizing the regulatory processes, infusion of transparency and avoids procedural delays in getting statutory clearances from various authorities and real time receipt of application by all agencies simultaneously.

#### **I DERIVATION OF POWERS**

- i) The Delhi Police Act, 1978, which was enacted and came into force on 01.07.1978, confers the powers of the District Magistrate on the Commissioner of Police, Delhi. Section 28 of the Act empowers the Commissioner of Police, Delhi to make regulations for preservation of order in public places. Consequently, the "Regulation for Keeping Places of Public Entertainment in the UT of Delhi-1980"

was notified vide No. 4453/Special Cell dated 19.12.1980. As per the provision of Rule 6 of the aforesaid regulations, no person shall keep a place of public entertainment without obtaining a Lodging License in the NCT of Delhi.

- ii) In view of order No. 1862-92/Joint CP/Lic (HTL) dated 09/09/2021 amendment in Para II (C) (iv) and S.No. 5 of **Annexure-M** of the Standing Order, "Applicants should be in possession of a valid trade license from civic bodies, i.e. Municipal Corporations of Delhi / New Delhi Municipal Council /Delhi Cantonment Board etc. or applicant shall upload/E-mail Health Trade License issued by the Civic bodies on Unified Portal for Licensing of Eating/Lodging & Boarding Establishments in Delhi within 60 days from grant/renewal of License issued by the Licensing Authority under "Regulation for Keeping Places of Public Entertainment in the Union Territory of Delhi-1980". Licensing Unit, Delhi Police will grant/renew License after obtaining required clearances from Delhi Fire Service, consent order from Delhi Pollution Control Committee without waiting for the Health Trade License from the MCsD and other Civic bodies. However, the applicant or the Civic bodies will upload/e-mail the Health Trade License issued on the Unified Portal within 60 days of issuance of Registration Certificate/License.

**iii) COMPETENT AUTHORITY**

As per the order of delegation of Power, the powers of Licensing regarding 'Places of public entertainment', the Commissioner of Police, Delhi has delegated the powers to Joint Commissioner of Police, Licensing, Delhi. Appeal in all cases lies with the Lieutenant Governor.

**II SALIENT FEATURES OF MASTER PLAN, DELHI, 2021**

- A. As per Municipal Property Tax Guide, colonies/localities/areas have been categorized as A,B,C,D,E,F & G.
- B. Areas in NCT of Delhi where boarding and lodging activities are permissible:

As per the Master Plan Delhi 2021 notified by the Ministry of Urban Development, Govt. of India vide SO No. 141(E) dated 07.02.2007, the following activities are permissible in the following areas:-

- (i) **Hotels:** Permitted in commercial use zone, commercial centres in industrial use zone and transport Nodes (ISBT, bus depot/terminal, railway station, airport, integrated freight complex,

metropolitan passenger Terminal) and other use zones -where it is already existing and where building plans are approved by the competent authority (Refers to Para 5.8 of the MPD-2021).

- (ii) **Service Apartments:** A premise fully furnished, serviced and self contained with meal preparation and use for short term corporate accommodation. The activities permitted are guest suites, conference facilities, office, retail and service shops to be restricted up to 20% of floor area. The Master Plan permits service apartments in metropolitan city centres, district centres and community centres.
  - (iii) **Motels:** New motels are not permitted in the green belt. However, existing village abadis, regularized unauthorized colonies and approved motels may continue in the green belt (Refers to Para 3.2.1 of the MPD-2021).
  - (iv) **Guest House:** Guest Houses (including lodging house) irrespective of numbers of rooms are also permitted in residential areas as mentioned at para-15.7 of the MPD-2021. Similar is the case with regard to other lodging & boarding formalities like Bed & Breakfast establishments, dharamshalas/Hostels, etc.
- C. Mandatory requirements to start a guest house in residential areas:
- (i) **Land:** The minimum size of plot shall be 200 sq. meters in regular plotted development area and 75 sqm. in Rehabilitation area, walled city, special area, regularized-unauthorized colonies, resettlement colonies & urban villages (Para 15.7.3 of the MPD-2021 refers to)
  - (ii) **Minimum Right of Way (ROW) (Refers to para 15.7.2 of the MPD):-**
    - (a) In A & B Colonies: 18 mt. ROW in regular plotted development.
    - (b) In C & D Colonies: 18 mt. ROW in regular residential plotted development, 13.5 mts ROW in rehabilitation colonies and 9 mt. ROW in regularized-unauthorized colonies, re-settlement colonies, Walled City, special area and urban villages; and in pedestrian shopping streets (of less than 6 mt. ROW).
    - (c) In E, F & G colonies: 13.5 mt. ROW in regular plotted development, 9 mt. ROW in rehabilitation colonies and 6 mt. ROW in Walled City. Regularized-unauthorized colonies, re-settlement colonies, special area and urban villages, and in pedestrian shopping streets with less than 6 mt. ROW.
  - (iii) Fire clearance from Chief Fire Officer. Delhi.

- (iv) Structure safety certificate and certificate of height of building as per provisions contained in MCD Health Deptt. Circular No. Dy. MHO(PH)/2008/507 dated 08/04/2008.

D. **Special Area:** Under para 16.2 of MPD-2021, the walled city and its extensions, Karol Bagh and the contiguous area in between has been designated as Special Area. Special Area has been divided into three separate parts, namely (i) walled city (ii) walled city and extension and (iii) Karol Bagh as explained in para 3.3.1.2 of the MPD-2021. Walled city of Shahjahanabad comprises area bounded by Ring Road on the East, Asaf Ali Marg/Jawahar Lal Nehru Marg in the South, Railway Line on the West and Boulevard Road in the North. The walled city extension comprises Pahar Ganj, Sadar Bazar, Roshanara Road, and their adjoining areas.

E. **Pedestrian Shopping Street (PSS):** Streets of less than 6 meter ROW notified as Mixed Used Street or Commercial Street in regularized-unauthorized colonies, re-settlement colonies, special areas and urban villages and not open to motorized transport as defined in para 15.3.3 of the MPD-2021 are known as PSS.

F. **Relaxation:**

1. The variation of +/-5% in Plot size may be disregarded as per provision contained in para 15.7.3 of the MPD.
2. As per provisions contained in para 15.7.3 (v) of MPD-2021, the guest houses operating in plots abutting streets of prescribed minimum ROW in special area and in plots abutting Master Plan Roads and Zonal Plan Roads shall be permissible upto 100 % of built-up area and the limits on the size of the plot shall not apply. Provided that except in LBZ and Civil Line Bungalow Zone, Guest Houses that were operating validly under provisions of MPD, prior to 07.09.2006 would continue to run to the extent as was permissible at that time.
3. Parking @ 2.0 E.C.S per 100 sq. mt built up area shall be provided within the premises. Where this is not available, cost of development parking, shall be payable by the plot allottee/owner to the local body concerned, as per provision contained in para 15.4-other terms & conditions No. (v) of MPD. The parking charge varies from one category to another category.
4. The commercial activity existing prior to 1962 in residential areas and streets/stretches shall continue subject to documentary proof thereof, as per provision contained in para 15.3.1 of MPD-2021.

### **III ORGANISATION IN LICENSING UNIT**

The hotel section under the overall supervision of the Licensing Authority shall be headed by an Assistant Commissioner of Police, assisted by Inspector (Hotel).

The File Processing Officer (SI/ASI/HC/Ct.) shall report to the Insp. Hotel Section. File Processing Officers to be assigned entities keeping in view the workload in various Districts/Units. Each File Processing Officer will maintain the data in digital format through computer generated reports from online portal.

### **IV FEEDBACK FROM THE PUBLIC**

The grant/renewal of the Licenses of Lodging Houses are online on the Unified Portal <https://delehlhlic.mha.gov.in>. Feedback form is also available on <https://delhipolicelicensing.gov.in/feedback/dplu/feedback>. Moreover, periodic meetings with Hotels/Guest house Associations should be organized, for better coordination and addressing the genuine grievances of the Hotel owners. The meeting shall be held on half yearly basis at ACP level and once a year at the senior level.

### **V PROCEDURE**

#### **(A) APPLICATION FOR GRANT/RENEWAL OF LODGING LICENSE**

The grant /renewal of the Licenses of Lodging House are applied online on the Unified Portal <https://delehlhlic.mha.gov.in> and upload the documents as per list given at the Unified Portal.

Note: No physical documents are required for grant/ renewal of Lodging License for Hotels/Guest Houses.

#### **(B) SCRUTINY OF ONLINE APPLICATION**

Scrutiny of applications for grant/renewal of Lodging License shall be done online on Delhi Police Portal. File Processing Officer will process the application as per timeline (**Annexure-1**).

#### **(C) FOLLOW UP OF THE ONLINE APPLICATIONS**

The pendency status with the File Processing Officers & other officers can be accessed through the computer/website generated reports, developed by Electronic Data Processing within Portal.

#### **(D) GRANT OF LICENSE**

On receipt of all the required reports, the Lodging House premises

may be inspected by an official of the Licensing Branch, before or after the grant of Lodging License, who should submit his inspection report on the prescribed proforma, as at **Annexure-2**. The ACP, Inspector I/C shall ensure that the applications are processed as per timeline. Every file that is being put up to the Addl. CP/Joint CP Licensing for grant of fresh licenses should contain documents as mentioned in the Unified Portal and the noting by the File Processing Officer stating the chronological position of the case being processed, and if there are any cases pending, the reasons for the pendency should be clearly indicated. Lodging License will be granted for three years beginning from 1<sup>st</sup> April and ending on 31<sup>st</sup> March. The competent authority has the discretion to refuse the license if it appears to him/her that such place may cause obstruction, inconvenience, annoyance, risk, danger or damage to the residents or passengers in the vicinity and the applicant is not a suitable person as per Clause 25 of "Regulations for Keeping Places of Public Entertainment in the Union Territory of Delhi"). The premises/entities which have applied for grant of License/ renewal of License and whose applications are still under consideration and not rejected/ disposed off/ finalized by the Licensing Authority should not be prosecuted as per earlier directions conveyed vide orders Nos. 41-60/P.Sec./CP dated 04/01/2008 and 64-83/Addl CP/LIC. (EH)/P.Sec. dated 25/03/2011 respectively (**Annexure-3**).

**(E) STAMPING OF GUEST REGISTER**

On receipt of request from the Licensee for stamping of prescribed blank visitor/guest register, the File Processing Officer at public lounge shall put up the same through proper channel to the ACP along with the check list as at **Annexure-4** and after approval, the same may be stamped and signed by the in-charge of hotel. Licensee shall be encouraged to maintain digital records of Guests also.

**(F) PROCEDURE OF RENEWAL OF LICENCE**

In order to facilitate speedy renewal of existing licenses, application for renewal of License shall be made online as per the format at <https://delehlhlic.mha.gov.in>. The License is deemed to be valid until it is renewed or the renewal has been refused. The ACP, Inspector/Hotel shall ensure that the applications are processed as per time line. Every file is to be routed through ACP/Eating & Hotel for renewal. The Lodging License granted/renewed in accordance with the Regulations for Keeping Places of Public Entertainment in Union Territory of Delhi, 1980, shall be valid for three years beginning from 1<sup>st</sup> April and ending

on 31<sup>st</sup> March. The check list of documents required to be uploaded online with the Unified Portal at the time of renewal, which are available with the portal <https://delhipolicelicensing.gov.in/checklists/lodging-house checkList.pdf>.

**PERIODIC INSPECTION:** - Since the period of validity of Lodging License has been increased, there might be possibilities of change in the terms and conditions and circumstances of the Lodging House and Licensee, the Licensing Unit will conduct periodic inspection (at least once in three years) with or without help of Local Police to ensure that there is no major structural deviation/changes in the premises compared to when the original License was issued. Such inspection will be carried out on the directions of Licensing Authority.

**TRANSFER OF LODGING LICENSE/CHANGE OF ADDRESS OR LICENSEE OR CHANGE OF NAME OF THE HOTEL/GUEST HOUSE IN LODGING LICENSE:**

The Lodging License may be transferred in case of death of Licensee or other circumstances after the production of amended trade license issued by the civic body along with other required documents, after due Antecedent Verification Report etc. as deemed fit by the Licensing Authority. In case of change of address of Lodging Licensee, the same is amended subject to Antecedent Verification of the applicant. The change in name of the Lodging House may be endorsed in the Lodging License on the request of the Licensee. However, the General Condition of Terms & Conditions of Registration Certificate to operate a Lodging License envisage that *"This license is non transferrable and non assignable except as provided in the "Regulation for Keeping Place of Public Entertainment in the Union Territory of Delhi, 1980". If the licensee to whom the license is granted, transfers or assigns his business to any other person or enters into an agreement with another person, involving him/her giving up the conduct or control over the business, the license granted to him/her shall stand terminated on and from the date of such transaction"*. The name of the entity shall not be changed in whatsoever manner without the approval of Competent Authority. The Licensing Authority may also frame Terms & Conditions to be complied with by Licensee which shall be part of the Lodging License issued or renewed.

**(G) MONITORING OF PENDENCY**

The weekly report shall be submitted by each File Processing Officer on every Friday to Inspr./Hotel who shall submit the same to ACP/ Eating & Hotel. ACP/Eating & Hotel shall finally submit

the consolidated report to Addl. CP/Jt. CP Licensing through DCP/Licensing in the format revised from time to time.

**VI CANCELLATION/SUSPENSION/CESSATION:-**

As per clause 37 & 38 of "Regulations for Keeping Places of Public Entertainment in the Union Territory of Delhi-1980", the competent authority shall have the power in his discretion at any time to cancel a License granted under these Regulation or to suspend it for such period as he may specify and to direct the keeper of any place of Public Entertainment to close place either permanently or temporarily or otherwise act with reference thereto if the Competent Authority is satisfied after such enquiry as he deems fit that the Licensee is not a suitable person for continuing to hold the License or in order to prevent any obstruction, inconvenience in the vicinity or to prevent disturbance in such place and every person keeping a place of Public Entertainment shall forthwith comply with such directions. No License granted under these Regulations shall be cancelled or suspended until the holder of a License has been given a reasonable opportunity showing cause why his License should not be cancelled or suspended as the case may be: Provided that no such opportunity for showing cause shall be necessary when the License is suspended temporarily pending an enquiry against the holder of the license for contravention of any of these regulation or any order made there under or of any of the conditions of the license granted to him.

**VI (A). CESSATION/SUSPENSION OF LICENSE:**

Cessation/Suspension order shall be issued immediately after expiry of Fire Safety Certificate issued to Hotel/Guest Houses by Delhi Fire Service.

**VI (B). REVOCATION OF CESSATION/SUSPENSION:-**

Revocation of Cessation/Suspension order shall be issued immediately after receiving of renewed/valid Fire Safety Certificate issued to Hotel/Guest Houses by Delhi Fire Service.

**VII SHOW CAUSE NOTICES**

No Show Cause notice for suspension/revocation, etc. shall be issued without approval of the competent authority i.e. Addl./Joint Commissioner of Police/Licensing. The said notice may be issued after approval of Licensing Authority by ACP/DCP Licensing and shall be served through E-mail by Inspr./Lodging House to the person concerned and a copy be marked to concerned Distt./Unit DCP, Delhi Police. A period of 15 days to show cause



including personal hearing shall be afforded from the date of receipt and the notice shall be decided expeditiously and in any case within a period of 60 days.

#### **VIII APPEAL**

Any person aggrieved by an order of refusal to grant or renew the lodging license or order cancelling or suspending the license may, within 30 days from the date of receipt of the order, file an appeal before the Hon'ble Lt. Governor, Delhi (Administrator).

#### **IX ACTION BY LOCAL POLICE**

During major arrangements like Republic Day, Independence Day & festival seasons apart from regular checking, the Local Police will ensure following action on a sustained basis :-

1. Action against unauthorized Guest Houses should be ensured.
2. Entry of Guests in Arrival and Departure Register of Hotel/Guest Houses to ensure that the identity proof of each occupants staying in Hotel/Guest Houses is being maintained by the Licensee.
3. It may be ensured that CCTV cameras are functional with recording facility of 30 days.
4. DFMDs are in proper working condition and proper searching/frisking of the Guests is being done by HHMDs.
5. Vehicles are properly checked in the premises particularly vehicles parked in basement parking.
6. Form-C is mandatorily being filed by Licensee in case of foreigners staying in the Hotel/Guest Houses.
7. A report should be submitted by District DCsP as and when any criminal case is registered against the Licensee/premises.

#### **X SUPERSESSION CLAUSE**

This Standing Order supersedes the previous Standing Order No.58/2009 issued vide No.13906-14006/Record Branch/PHQ dated 22.07.2009.

**XI DISCLAIMER**

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.

*Rakesh Asthana*

(RAKESH ASTHANA)

COMMISSIONER OF POLICE:

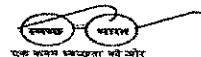
DELHI. 08.06.2022

No. 46851-47000/Record Branch/PHQ dated Delhi, the 8/6/22.

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
10. HAR/PHQ.
11. Librarian/PHQ.

**Annexure-1**



**OFFICE OF THE JOINT COMMISSIONER OF POLICE: LICENSING UNIT,**

**1<sup>ST</sup> FLOOR PS DEFENCE COLONY, NEW DELHI.  
Telephone No. 011-26250595 E-mail:[addlcp.lic-dl@nic.in](mailto:addlcp.lic-dl@nic.in)**

**Sub: Latest Timeline for Grant of Registration Certificates for Eating Houses and Licenses for Guest Houses**

Ministry of Home Affairs, Govt. of India has directed that all applications for grant of Registration Certificate (Eating Houses) and Licenses (Guest Houses) be finalized within sixty (60) days and uploaded on the Unified Portal for Licensing of Eating and Lodging Establishments in the NCT of Delhi, Ministry of Home Affairs, New Delhi. In order to meet the timeline, CP/Delhi has approved following internal timeline:-

| <b>Sl. No.</b> | <b>Activity</b>                                                                                                                                                                                                                            | <b>Timeline</b>                                                 |
|----------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------|
| 1.             | The DA shall seek ASR & CVR from District/Traffic Police through the portal immediately.                                                                                                                                                   | <b>Immediately</b>                                              |
| 2.             | Furnishing of Area Suitability Report and Character & Antecedents Verification Report by District/Traffic Police.                                                                                                                          | <b>15 days for grant of new license and 7 days for renewal.</b> |
| 3.             | Initial scrutiny of application by the dealing assistant (DA). Applications complete in all respects should be accepted and processed further otherwise deficiency should be raised to the applicant.                                      | <b>3 working days</b>                                           |
| 4.             | Rectification of deficiencies by the applicants                                                                                                                                                                                            | <b>15 days</b>                                                  |
| 5.             | Scrutiny of rectified documents by the DA and communication of further deficiencies, if any. Applications complete in all respects should be accepted and processed further otherwise second deficiency should be raised to the applicant. | <b>3 working days</b>                                           |
| 6.             | Rectification of deficiencies raised on the second occasion by the applicant.                                                                                                                                                              | <b>7 days</b>                                                   |

|    |                                                                                                                                                                                                                                                                        |                                                                   |
|----|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------|
| 7. | Scrutiny of rectified documents by the DA. Applications complete in all respects should be accepted and processed further. In case, the application is not complete despite communication of deficiencies on two occasions the same should be processed for rejection. | <b>3 working days</b>                                             |
| 8. | Uploading the Registration Certificate/License by Licensing Unit on the Unified Portal of Ministry of Home Affairs.                                                                                                                                                    | <b>60 days from the date of receipt of application on portal.</b> |

Past experience shows that Character Verification Reports (CVRs) and Area Suitability Reports (ASRs) are received after inordinate delay, which hinders the entire process. District DCsP are hereby directed to ensure that CVR and ASR are sent by e-mail to Licensing Unit within the prescribed time limit as mentioned at Sl.No.2.

For meticulous compliance by all concerned.

**(Dr. O.P. Mishra) IPS**  
JOINT COMMISSIONER OF POLICE  
LICENSING: DELHI

**All Distt. DCsP/Delhi including**  
**DCsP/Airport & Metro, Delhi.**

No.                      /P.Sec./Jt.CP/Lic. Dated, Delhi, the                      2022.

**Copy for information to the:-**

1.    **Spl. CP/Ops. & Lic., Delhi.**
2.    **Spl. CsP/Zones, Delhi.**
3.    **Jt. CsP/Ranges, Delhi.**

**ANNEXURE-2**

**LICENSING UNIT: DELHI POLICE**  
**HOTEL INSPECTION FORM**

**Lodging House details:**

|    |                                                                                                      |                                                                                                                                                                                                                        |
|----|------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1. | Name of the lodging house.                                                                           |                                                                                                                                                                                                                        |
| 2. | Whether the lodging house has a valid Lodging License? If yes, details thereof.                      |                                                                                                                                                                                                                        |
| 3. | Address of the premises, where the lodging house is established.                                     |                                                                                                                                                                                                                        |
| 4. | (a.) Details of Property. (Owner/ Lease/ Rented/ others)                                             |                                                                                                                                                                                                                        |
|    | (b.) Has the Lease/ Board Resolution and other documents available in record?                        |                                                                                                                                                                                                                        |
| 5. | Floor wise number of Rooms & Beds.                                                                   | G/UG Floor: ___ Beds ___ Rooms<br>1 <sup>st</sup> Floor : ___ Beds ___ Rooms<br>2 <sup>nd</sup> Floor : ___ Beds ___ Rooms<br>3 <sup>rd</sup> Floor : ___ Beds ___ Rooms<br>4 <sup>th</sup> Floor : ___ Beds ___ Rooms |
| 6. | Do the number of rooms and beds match with those mentioned in the Lodging License?                   |                                                                                                                                                                                                                        |
| 7. | Is the applicant using the basement/ mezzanine/ UG/ LG floors for any purpose? If yes, give details. |                                                                                                                                                                                                                        |
| 8. | Whether any kitchen is located on the rooftop or in the basements of the lodging house?              |                                                                                                                                                                                                                        |
| 9. | Whether any generator is installed for power backup? Whether NOC from DPCC is valid or not?          |                                                                                                                                                                                                                        |

|     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |
|-----|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| 10. | Is the layout of the lodging house in conformity with the conditions of the Fire Safety Certificate issued by Delhi Fire Service i.e. whether the lodging house is operating on the permitted floor (s) only?                                                                                                                                                                                                                                                                                         |  |
| 11. | <p>Status of Fire Safety Measures:</p> <p>a) No. of portable fire extinguishers (date of last refill).</p> <p>b) Fire alarm systems.</p> <p>c) Whether fire/ emergency exits are available?</p> <p>d) Whether fire/ emergency exit signs are marked or not?</p> <p>e) Whether the passages are free from any obstruction, hindrance and temporary fixtures or not?</p> <p>f) Whether the fire/emergency exits are clear and kept free from any obstruction, hindrance and any temporary fixtures?</p> |  |
| 12. | Height of Entity, as per application.                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  |
| 13. | Compliance of Clause No. 7.31, as per Gazette Notification dated 27/04/2019 issued by GNCT. Whether complied or not?                                                                                                                                                                                                                                                                                                                                                                                  |  |
| 14. | Whether the lodging house has a full-fledged kitchen for room service or a pantry?                                                                                                                                                                                                                                                                                                                                                                                                                    |  |
| 15. | Is the Lodging House providing any banquet service? If yes, give details of seating/holding capacity thereof                                                                                                                                                                                                                                                                                                                                                                                          |  |
| 16. | Parking Facility. How many vehicles can be accommodated?                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |
| 17. | What is the mechanism for checking of vehicles entering the premises?                                                                                                                                                                                                                                                                                                                                                                                                                                 |  |
| 18. | Is the CCTV System functional or not? If yes. Whether it has recording/storage capacity for at least 30 days?                                                                                                                                                                                                                                                                                                                                                                                         |  |
| 19. | Whether DFMDs/HHMDs are functional in the Lodging House?                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |
| 20. | <p>Whether X-ray baggage scanners with trained operators are functional if the lodging house is a motel or star hotel? If yes, give details.</p> <p>Is the mechanism for scanning of bags and baggage of the visitors in place, if the lodging house does not belong to the above category?</p>                                                                                                                                                                                                       |  |

|     |                                                                                                                                                                                                       |  |
|-----|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| 21. | Whether an updated Guest Register is being maintained in the Lodging House? If yes, whether the same has been countersigned by the Licensing Unit? Mention discrepancies noticed if any.              |  |
| 22. | Whether identity documents are being collected for each occupant separately by the Lodging House?                                                                                                     |  |
| 23. | Was there any discrepancy with respect to occupancy, entries in guest register, and identity documents of guests noticed? If yes, give details.                                                       |  |
| 24. | Whether the lodging house has obtained login credentials from FRRO for submission of C- forms and submitting the same to the FRRO within 24 hours of check in? Give details of discrepancies, if any. |  |
| 25. | No. of employees in the lodging house. Whether, police verification of all the employees been conducted?                                                                                              |  |
| 26. | Any other observation                                                                                                                                                                                 |  |

Name of Witness

Name of Licensee/ Manager

(Signature of Witness)

(Signature of Licensee/ Manager)

Name of Inspecting Officer

(Signature)

Rank & Name\_\_\_\_\_

Belt & PIS No.\_\_\_\_\_

Section\_\_\_\_\_

**OFFICE OF THE COMMISSIONER OF POLICE: DELHI**

**ORDER**

Concerted action u/s 28/112 DP Act needs to be taken by the local police against those Eating Houses whose owners/keepers have not applied for grant of Registration Certificates under the provisions of the Delhi Eating House Registration Regulations - 1980 before the Registering Authority, Delhi Police within 30 days of the commencement of the Eating House. Eating Houses whose application for grant / renewal of the Registration Certificates has been rejected are required to be challaned. Similarly, Eating Houses which have not applied for its renewal need to be prosecuted. Running such Eating Houses without valid Registration Certificates is a continuing offence and therefore, they should be challaned on a fortnightly basis and a request should invariably be made to the Ld Trial Court for ordering their closure.

However, it is desirable that no action should be taken against those Eating Houses who have applied for grant / renewal of Registration Certificates and whose applications are pending consideration with the Licensing Unit. Such Eating Houses should be treated as applicants as is the case with Guest Houses and should not be challaned.

District Addl CsP / DCsP need to ensure strict compliance of these Instructions and send a monthly report regarding the prosecution of the illegal Eating Houses to the Addl CP Licensing for updating the Licensing Unit database.

-SD-

[B. K. GUPTA]

COMMISSIONER OF POLICE, DELHI

SPECIAL CP (ADMN)  
JOINTCsP/RANGES/OPs/CRIME & HQ  
ADDL CsP/DCsP/DISTRICTS/IGIA/CRIME/LICENSING

No. 64-83/ADDL.CP/LIC(H), Dated New Delhi the 25.03.2011



**OFFICE OF THE COMMISSIONER OF POLICE: DELHI**

Concerted action needs to be taken to prosecute guest houses which are operating without having applied to the Licensing Branch for a license or which continue to operate despite their applications have been rejected. Running such illegal guest houses is a continuing offence. All such guest houses should be challaned at least once a week and request made to the concerned Magistrate for closure orders.

Action may not, however, be taken, for the present, against licenced guest houses which have not got their licenses renewed and guest houses which have applied for licenses and their applications are pending consideration.

District DCsP need to ensure strict compliance of these instructions and send a fortnightly report regarding the prosecution of the illegal guest houses to the DCP/Licensing/Crime Branch for projection in the fortnightly law & order meeting.

-sd-

(Yudhbir Singh Dadwal)  
Commissioner of Police: Delhi.

Spl. CP/Admn.  
Joint CsP/Ranges/Crime & HQ  
DCsP/Districts/Crime/IGIA/Licencing

No. 41-60 /P.Sec/CP dated Delhi the 04.01.2008.

**Annexure-4**

**APPLICATION FOR THE STAMPING OF VISITOR/GUEST REGISTER OF  
LODGING LICENSE OF HOTEL, HOSTEL, MOTEL, GUEST HOUSE AND  
OTHER PLACES OF PUBLIC ENTERTAINMENT IN THE NCT OF DELHI**

|    |                                                                                                                                                                                                                        |  |
|----|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| 1. | Name of Guest House /<br>Boarding House / Lodging<br>House / Hotel / Hostel, etc.<br>with address.                                                                                                                     |  |
| 2. | Name & address of the licensee                                                                                                                                                                                         |  |
| 3. | Existing Lodging House No.<br>with its validity                                                                                                                                                                        |  |
| 4. | Existing Trade License from<br>MCD/NDMC/DCB etc, with its<br>validity. In case of expired<br>validity, the details of<br>application made for renewal<br>thereof be indicated along with<br>supporting documents       |  |
| 5. | Date of last stamping of<br>visitor/guest register by<br>licensing branch and the S.No.<br>& date of the last entry                                                                                                    |  |
| 6. | Existing NOC by fire<br>Department with its validity.<br>In case of expired validity, the<br>details of application made to<br>Licensing Branch for renewal<br>thereof be indicated along with<br>supporting documents |  |

Dated \_\_\_\_\_

(Signature of Licensee/Agent)

Name & Designation of the Agent, if  
any: \_\_\_\_\_

**ANNEXURE-M****CHECK LIST FOR RENEWAL OF LODGING LICENSE**

NAME OF THE HOTEL/GUEST HOUSE WITH ADDRESS \_\_\_\_\_

| S.NO. | DOCUMENTS REQUIRED                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             | DOCUMENT<br>DETAIL | PLACED AT<br>PAGE NO. |
|-------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------|-----------------------|
| 1.    | NAME OF THE LICENSEE<br>LICENSE NO.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |                    |                       |
| 2.    | C.R.O CHECK                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                    |                       |
| 3.    | EXISTING LICENSE RENEWED UP TO                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |                    |                       |
| 4.    | NOC BY FIRE DEPARTMENT WITH ITS<br>VALIDITY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                    |                       |
| 5.    | MCD/NDMC TRADE LICENSE WITH<br>VALIDITY PERIOD & NO. OF ROOMS/BEDS<br>"Applicants should be in possession of a valid<br>Health Trade License from Civic Bodies, i.e.,<br>Municipal Corporations of Delhi/New Delhi<br>Municipal council/Delhi Cantonment Board<br>etc. or the applicant shall upload/e-mail<br>health Trade License issued by these Civic<br>bodies on Unified Portal for Licensing of<br>Eating/Lodging & Boarding Establishments in<br>Delhi within 60 days from grant/renewal of<br>Registration Certificate issued by the Licensing<br>Authority under Regulations for Keeping<br>Places of Public entertainment in the Union<br>Territory of Delhi, 1980" |                    |                       |
| 6.    | AFFIDAVIT ON STAMP PAPER OF RS. 10<br>SUPPLIED OR NOT, IF SO, THE CONTENTS<br>OF AFFIDAVIT ARE SUPPORTED BY<br>DOCUMENTS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                    |                       |
| 7.    | LIST OF WORKERS SUPPLIED                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |                    |                       |
| 8.    | MEDICAL CERTIFICATE OF FOOD<br>HANDLERS FURNISHED                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |                    |                       |
| 9.    | COPY OF ELECTRICITY BILL/WATER BILLS<br>ETC SUPPLIED OR NOT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                    |                       |
| 10.   | WHETHER ANY SHOW CAUSE NOTICE IS<br>PENDING                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                    |                       |

**Dealing Hand****SI/Hotel****Inspr./Hotel**